

22AHCV00548 22AHCV00548

County: los-angeles

Division: Civil Law and Motion

Department: X

Hearing date: 2026-08-12

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ALH%2CX%2C08%2F12%2F2026

Source SHA-256: e73f0440c33d2d095d174d2495d551f38fc1eb2b18a47c3b7cfcf8a17729ba52

Case Number: 22AHCV00548 Hearing Date: August 12, 2026 Dept: X

#22 - PREF PASADENA COLLECTION, LLC vs PASADENA COLLECTION WEST PROPERTY OWNERS' ASSOCIATION

The motion is granted.

In the Statement of

Decision, the referee recommended entry of judgment for the Association on all causes of action, found the Association to be the prevailing party under Civil Code section 5975, subdivision (c), and awarded \$328,933.10 in attorney fees and \$127,019.78 in costs.

Plaintiff PREF

Pasadena Collection, LLC opposes and objects to the referee's statement of decision. The opposition argues the fee-and-cost award conflicts with CC&R section 14.5.1.12, that Civil Code section 5975(c) does not apply because the action was not brought to enforce the governing documents, and that the cost award is insufficiently itemized. (Objs., pp. 3; Opp., pp. 2-3.) Plaintiff requests corrections or clarification before judgment is entered.

This case proceeded

as a section 638 general reference on all issues in dispute. According to Code of Civil Procedure section 644, the decision of the referee upon the whole issue must stand as the decision of the court, and upon filing of the statement of decision, judgment may be entered thereon in the same manner as if the action had been tried by the court.

Accordingly, the

referee's decision is not an advisory recommendation that this Court may reweigh or revise on the present motion. (See Michael S. Yu, a Law Corp. v. Superior Court (2020) 56 Cal.App.5th 636, fn. 6 [disapproving dictum in In

re Marriage of Demblewski (1994) 26 Cal.App.4th 232, 237 that motions may be made to the trial court before judgment is entered on the referee's decision[.]) Here, the Court's task is to enter judgment consistent with the referee's decision, not to conduct a review of the referee's reasoning or the evidentiary basis for the fee and cost award.

Plaintiff's

arguments concerning the CC&Rs, Civil Code section 5975(c), and the sufficiency of the cost showing are preserved by its opposition and objections.

But those arguments do not authorize the Court, at this pre-judgment stage, to refuse entry of judgment on a section 638 decision that must stand as the decision of the court. To the extent Plaintiff seeks review of asserted legal error in the referee's decision, the statutory scheme provides post-judgment avenues for challenge rather than pre-judgment revision of the decision itself.

(Yu, supra, 56 Cal.App.5th at p. 647 ["Logically, the language in section 645 about exception and review, namely that a general referee's decision 'may be excepted to and reviewed in like manner as if made by the court' (italics added), means that aggrieved parties have the option to challenge the general referee's decision by bringing a postjudgment motion (see e.g., §§ 663a, 657), or by filing an appeal."].)

Defendant is to submit a Proposed Judgment for review and entry by the Court on or before September 30, 2026.

Moving Party is to give notice.